

2	Jefferson Capital Systems, LLC vs. Son 30-2025-01496753-CU-CL-CJC	Motion to Set Aside Dismissal The motion of plaintiff Jefferson Capital Systems, LLC to set aside dismissal is GRANTED. OSC re dismissal (default judgment) is scheduled for 9/24/2026 at 1:30 PM. Plaintiff is ORDERED to request entry of default and submit a default prove-up package to the court before the hearing. If plaintiff fails to do so, the court will again dismiss the action unless plaintiff appears and shows good cause otherwise. (See Cal. Rules of court, rule 3.110(b); Local Rule 381.) Plaintiff shall file and serve a status report no later than 5 court days before the hearing. <i>Failure to comply may subject the parties and/or counsel to sanctions pursuant to Code of Civil Procedure section 177.5.</i> Clerk to give notice.
3	Star vs. TopRank Motorworks Inc. 30-2024-01434530-CU-BC-CJC	Motion for Judgment on the Pleadings Off calendar – withdrawn at request of moving party.
4	DI Overnite Investments, LLC vs. Martin 30-2024-01410563-CU-BT-CJC	Motion for Terminating Sanctions and Monetary Sanctions for Failure to Obey Court Orders Defendants Michael Martin; Philip Nabal; and Express Overnite, LLC’s unopposed motion for terminating sanctions is GRANTED. Defendants’ request for additional monetary sanctions is DENIED. Defendants’ requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).) Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal.App.4th 262, 279.) Plaintiffs were ordered in May 2025 to provide further responses and verifications, and to produce responsive documents to Defendants’ requests for production. Additionally, the Court imposed monetary sanctions on Plaintiffs. Plaintiffs paid the monetary sanctions, however, never complied with the ordered discovery in over a